

25NNCV02495 25NNCV02495

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C09%2F17%2F2026

Source SHA-256: 577251b24ae8c49892a19bb6236a2356523aa7d28e65de0d9ff60b632f3ea056

Case Number: 25NNCV02495 Hearing Date: September 17, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET TWO IN PART and GRANTING REQUESTS FOR MONETARY SANCTIONS IN PART

I. INTRODUCTION

This is an action for negligence and premises liability arising from a slip and fall injury Plaintiff Lilia Quentero alleges she suffered on property owned by Defendant Jean P. Arslan. Plaintiff alleges she slipped on an unknown substance going down the stairs.

On April 11, 2025, Plaintiff filed her Complaint against Defendant alleging two causes of action for negligence and premises liability.

On May 21, 2026, Defendant filed the instant motion to compel further responses to Form Interrogatories (FROGs), Set Two, and for monetary sanctions. On September 3, 2026, Plaintiff filed an opposition, and on September 4, 2026, Defendant filed a reply.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.

(2) An objection to a particular request is without merit or too general.

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

III. ANALYSIS

Plaintiff initially served objections-only responses to Form Interrogatory No. 17.1 on May 11, 2026. Because responses containing only objections need not be verified, the lack of verification did not render those responses a nullity.

After the motion was filed, Plaintiff served substantive supplemental responses on June 1, 2026. Defendant acknowledges receipt of those responses but argues the motion is not moot because the supplemental responses remain unverified.

The Court declines to determine the substantive sufficiency of the June 1 responses because those responses were served after the motion was filed and were not the responses challenged in Defendant's separate statement. Any dispute concerning their substantive sufficiency may be addressed separately. However, because the June 1 responses contain substantive answers, they must be verified.

Thus, the motion is GRANTED in part. Plaintiff is ordered to provide a verification of her June 1, 2026, supplemental response to Form Interrogatory No. 17.1 within 10 days' notice of this ruling.

Sanctions

Here, both parties request monetary sanctions. The Court DENIES Plaintiff's request and GRANTS Defendant's request in part against Plaintiff only.

Although Plaintiff served supplemental substantive responses on June 1, 2026, those responses were unverified. Thus, Defendant was justified in pursuing the motion to obtain verified responses. The Court finds one hour of attorney's time at Defendant's counsel's rate of \$450/hour reasonable. (Monadjemi Decl., ¶ 13.)

Thus, monetary sanctions GRANTED against Plaintiff only in the amount of \$450.

IV. ORDER

The Court GRANTS in part motion to compel further responses to FROG, Set Two. Plaintiff is ordered to provide a verification of her June 1, 2026, supplemental responses within 10 days' notice of this order.

The Court further GRANTS monetary sanctions in the amount of \$450 against Plaintiff only to be paid within 30 days' notice of this order.

Defendant is to give notice.

Dated: September 17, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT